

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RICARDO FORDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

Defendants.

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To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 6, 2021



Ellie A. Silverman, Esq.

THE LAW OFFICE OF ELLIE SILVERMAN, PC

Attorneys for Plaintiff

RICARDO FORDE

135 E. 57th Street, Suite 100

New York, New York 10022

215-620-6616

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER PATRICK D. CRAIG (SHIELD #26996)**, NYPD 77th Precinct, 127 Utica Avenue, Brooklyn, New York 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
RICARDO FORDE,

Plaintiff,

-against-

Index No.: _____

Date Purchased: _____

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,,

Defendants.

-----X
Plaintiff **RICARDO FORDE** by his attorneys **THE LAW OFFICE OF ELLIE SILVERMAN, P.C.** complaining of Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **RICARDO FORDE** was, and still is, an individual residing at City of New York, County of Kings and State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by NEW YORK CITY POLICE DEPARTMENT.

4. Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as an officers, agents, servants, and employees of Defendant **THE CITY OF NEW YORK** were acting for, and on behalf of, and with the power and authority vested in them by Defendant **THE CITY OF NEW YORK** and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
6. Within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. Pursuant to General Municipal Law § 50(h), a hearing was held on February 2, 2021 at the office of a designated agent.
8. Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** are sued in their official and individual capacities.

STATEMENT OF FACTS

9. Plaintiff **RICARDO FORDE** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

10. On or about April 7, 2020, at approximately 8:30 P.M., Plaintiff **RICARDO FORDE** was outside of his Godmother's apartment unit located at 266 Rochester Avenue located in the County of Kings, City of New York and State of New York when he became the victim of police brutality, police retaliation and/or police misconduct.
11. Plaintiff **RICARDO FORDE** was retaliated against, assaulted, violated, yelled at, battered, falsely arrested, maliciously prosecuted and became a victim of malicious and sadistic force.
12. At the time and place of occurrence, Plaintiff **RICARDO FORDE** was lawfully present along with his Godmother, two minor Godsisters and one minor Godbrother.
13. Upon information and belief, at the aforementioned time and place of the occurrence Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** were in plain clothes, specifically hooded sweatshirts when they approached Mr. Forde in an aggressive manner and did not identify themselves as police officers.
14. Upon information and belief, at the time of the occurrence and throughout the entire incident some of the Defendants were not wearing the required and mandated protective face coverings.
15. Upon information and belief, the defendants began chasing Mr. Forde into the building until they arrived at Mr. Forde's Godmother's apartment unit.
15. Upon information and belief, Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** without provocation, legitimate reason or any legality whatsoever unlawfully entered aforementioned apartment unit through forced entry by breaking/denting the entire wall of the apartment unit.
16. Upon information and belief, while mostly unmasked, Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** then without provocation or reasonable probable cause to do so, slammed Mr. Forde onto the floor.
17. Upon information and belief, with the barrel of a gun being pressed into Mr. Forde's head while being pushed onto the floor face-down, Plaintiff **RICARDO FORDE** was handcuffed while his

Godmother along with two minor Godsisters and one minor Godbrother were forced to watch this horrific display of excessive force and abuse.

18. Upon information and belief, in fear for their lives and safety and life of Mr. Forde, his Godmother began screaming “No gun! No gun!”.
19. Upon information and belief, Plaintiff **RICARDO FORDE** was then scooped up off of the ground, illegally and improperly searched.
20. Upon information and belief, Defendants **POLICE OFFICER PATRICK D. CRAIG (26996)** and **POLICE OFFICERS JOHN DOE #1-4** put their hands in Mr. Forde’s pants, grabbed his testicles and private parts and still did not explain or provide reasoning as to why he is being chased, assaulted and arrested.
21. Upon information and belief, Plaintiff **RICARDO FORDE** did not know the identity of the men who chased him and threw him to the ground until after he was handcuffed.
22. Upon information and belief, Plaintiff **RICARDO FORDE** was then transported to the 77th Precinct, where he was photographed, fingerprinted or otherwise processed and placed into dirty, infested and overcrowded holding cell.
23. Upon information and belief, Plaintiff’s handcuffs were not removed when he was placed into a holding cell.
24. Upon information and belief, Mr. Forde was not provided a mask or face covering and none of the other prisoners in the holding cell were wearing face coverings.
25. Upon information and belief, one of the other prisoners was coughing for hours crying that he was in need of a hospital, was sitting much less than six (6) feet from where Mr. Forde was sitting in the cell.
26. Upon information and belief, after Plaintiff **RICARDO FORDE** repeated pleas for a mask or protective face which were denied, he was then yanked from the cell and taken to “the back” of the precinct and assaulted by several officers.
27. Upon information and belief, the cameras were turned off or otherwise blocked and he was thrown

onto the ground face first, while handcuffed and illegally searched, inappropriately touched, sexually harassed, sexually assaulted and physically abused and violated.

28. Upon information and belief, after that prolonged assault by Defendants, Mr. Forde was then placed back in the holding cell.
29. Upon information and belief, at some point during his detention in 77th Precinct, Plaintiff **RICARDO FORDE** was informed for the first time the basis of his arrest was that there is a “warrant” out for his arrest.
30. Upon information and belief, while in detention in precinct holding cell, Mr. Forde witnessed approximately ten to fifteen (10-15) more men enter the precinct and placed in the cell and was present for their persistent asking what they are being arrested for and what the charges were.
31. Upon information and belief, after spending several hours in precinct holding cell, Mr. Forde was finally transported to Central Booking at approximately 8:00AM the following morning, where he was photographed, fingerprinted or otherwise processed.
32. Upon information and belief, while in Central Booking, between 8:00AM and 6:00PM, Mr. Forde witnessed approximately half of the men previously detained in the cell were released and told that they were being declined prosecution.
33. Upon information and belief, after spending approximately twelve (12) additional hours in a holding cell in Central Booking, Plaintiff **RICARDO FORDE** was told that he is being declined prosecution and released at approximately at 8:00PM.
34. Upon information and belief, upon release from custody, Mr. Forde returned to the 77th Precinct to collect his personal property for none of which he was provided a voucher.
35. Upon information and belief, upon return to his Godmother’s home, Plaintiff **RICARDO FORDE** witnessed the entire wall of the apartment unit dented and broken.
36. Said police misconduct violated the Civil Rights of Plaintiff **RICARDO FORDE**.
37. Said damage to Mr. Forde’s Godmother’s home resulted in significant property damage for which Mr. Forde is claiming was fixed with money out of his pocket.

38. Despite a decline to prosecute, one of the defendants called Mr. Forde's probation officer to inform her that Mr. Forde had been arrested for possession of marijuana.
39. Even though Mr. Forde immediately and vehemently denied that he had possession of marijuana and the Brooklyn District Attorney's office declined prosecution, the officer maliciously contacted Mr. Forde's probation officer.
40. Mr. Forde is often targeted by officers at the 77th Precinct indicating a pattern and practice of false arrest, malicious prosecution and fabrication of evidence.
41. In light of the COVID-19 pandemic, Defendants' failure to wear face coverings and to provide Plaintiff with appropriate face mask or other face covering despite his repeated pleas amounts to unconstitutional conditions of confinement, deliberate indifference to Mr. Forde's health, medical and safety concerns and is otherwise an assault and battery. Moreover, they placed him in an overcrowded holding cell, with other inmates without face coverings and recommended six (6) feet social distancing guidelines issued by CDC. By doing so they intentionally neglected or otherwise ignored Plaintiff's safety and wellbeing while he was in their care and custody.
42. There is no question that this ordeal has greatly affected him mentally, emotionally and psychologically. Additionally, and as a further result of this ordeal, which was instituted and maintained by Defendants, Plaintiff **RICARDO FORDE** has suffered substantial actual damages including and not limited to, legal fees and court costs, property damage, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996)
and POLICE OFFICERS JOHN DOE #1-4

43. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

44. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
45. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DERELICTION OF DUTY. DELIBERATE INDIFFERENCE
and FAILURE TO INTERVENE BY DEFENDANTS THE CITY OF NEW YORK,
POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4

46. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
47. Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.
48. Plaintiff duly relied on Defendants' fulfillment of their New York City Policing duties.
49. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.
50. At the time of the incidents, Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** were observing and aware of the wrongful acts against Plaintiff.

51. At the time of the incident, Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** neglected to intervene during the abuse at the apartment, the abuse at the precinct and generally on Plaintiff's behalf in dereliction of their duty to Plaintiff and in deliberate indifference to Plaintiff's well-being.
52. Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
53. Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by assault, abuse and punishments.
54. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL
HARM AND/OR DISTRESS

55. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
56. Courts have held that continuous and coercive harassment *can* establish an IIED cause of action. *Alexander v. Unification Church of America*, 634 F.2d 673, 678–679 (2d Cir.1980) (filing of harassing lawsuits, constant surveillance, patrolling of plaintiffs' homes); *Green v. Fischbein Olivieri Rozenbolc & Badillo*, 119 A.D.2d 345, 507 N.Y.S.2d 148 (1st Dep't 1986) (baseless eviction proceedings against plaintiff-tenant by landlord, disruption in services, deterioration of living conditions, interference with mails, verbal abuse of plaintiff and his guests). *But see, Gay v. Carlson*, 60 F.3d 83, 89 (2d Cir.1995) (finding plaintiff had not established an IIED claim where

“[a]ll that plaintiff alleges that any of the defendants has done is lodge official complaints about plaintiff's conduct or discuss the basis of those complaints with others.”).

57. A timely Notice of Claim was filed with the City of New York.
58. Because many of these “last actionable acts” occurred within the statute of limitations period, the action is not time-barred. *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under general principles of New York law, the statute of limitations “ ‘runs from the commission of the last wrongful act.’ ”)(citations omitted).
59. The emotional harm and/or distress continue to present day. Hon. Denise L. Cote reached a similar conclusion on this issue. *Bonner v. Guccione*, 94 Civ. 7735, slip. op. at 7–15, 1996 WL 22355 (S.D.N.Y. January 17, 1996)(holding where last act of an uninterrupted course of actionable conduct falls within statute of limitations, plaintiff permitted to assert IIED claim for entire course of conduct, even those acts beyond the statute of limitations). *Cf. Leonhard v. United States*, 633 F.2d at 613 (holding that under New York law where certain continuous wrongs are alleged, the last wrongful act triggers the statute of limitations).
60. Under the color of state law, Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** intentionally caused continuous emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
61. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon him throughout all stages of investigation, the continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.
62. As a result of the multiple acts, including but not limited to the acts briefly outlined, Plaintiff has suffered tremendously, experienced anxiety attacks, required regular therapy and has been emotionally distressed up to the present day.

63. Said police retaliation and false claims as outlined in the facts and below causes of action comprising this complaint has further contributed to Plaintiff's emotional harm and distress.
64. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.
65. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
66. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
NEGLIGENCE

67. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
68. Upon information and belief, a Notice of Claim was timely filed against the City.
69. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
70. Defendants **POLICE OFFICER PATRICK D. CRAIG (26996)** and **POLICE OFFICERS JOHN DOE #1-4** negligently caused injuries and otherwise damaged Plaintiff. The acts and conduct of Defendant were the direct and proximate cause of injury to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
71. Defendants were negligent during the entire course of the arrest and incarceration, departed from proper policy and procedures or otherwise abided by negligent custom and practices which have amounted to de facto policies and procedures.
72. For example, Defendants **POLICE OFFICER PATRICK D. CRAIG (26996)** and **POLICE OFFICERS JOHN DOE #1-4** negligently exposed Plaintiff to COVID-19.
73. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise

damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

74. Plaintiff **RICARDO FORDE** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
75. By the actions described above, Defendant **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** caused Plaintiff to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
76. After being falsely arrested and brutalized, Plaintiff was wrongfully confined up until the time of his release from custody.
77. Defendants herein falsely arrested Plaintiff in order to justify their unlawful actions.
78. A timely Notice of Claim was filed on behalf of Plaintiff.
79. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
80. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY AND ASSAULT AND EXCESSIVE FORCE

81. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
82. A timely Notice of Claim was filed by Plaintiff.

83. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
84. Defendant **THE CITY OF NEW YORK** is vicariously liable to Plaintiff for the individual Defendant's **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4**, common tort of battery and assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
85. Defendants committed assault and battery on Plaintiff when they chased after Plaintiff without identifying themselves as officers.
86. Defendants committed a battery on Plaintiff as described above, including but not limited to by placing Plaintiff in handcuffs, throwing him to the ground, assaulting him during arrest and while in their custody in the precinct and by keeping him handcuffed while in the holding cell, jumping on him and beating him in the back without the cameras, exposed him to potential dangers of COVID by failing to provide him with a mask or social distancing, among other incidents of assault and battery.
87. The act of pointing the gun at Plaintiff before and during the handcuffing amounted to excessive force.
88. The above-mentioned abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
89. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
90. That by reason of the battery and assault, Plaintiff was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendant's actions

91. The act of denying food, water, proper attention, proper safety procedures, failing to follow COVID protocols and failing to provide medical treatment also amounted to a battery.
92. The act of ignoring the Plaintiff's request to go to the bathroom amounted to assault and battery.
93. That by reason of the aforesaid committed by Defendants, Plaintiff suffered and continues to suffer physical and emotional injury and that he was otherwise damaged.
94. The incident taken in its totality amounts to unconstitutional conditions of confinement, deliberate indifference to Plaintiff's health, safety and well-being and otherwise subjected Plaintiff to harm.
95. Plaintiff was continuously subjected to excessive and unnecessary and unreasonable acts of physical force, excessive and unreasonable detention, and to unnecessary and unreasonable and excessive terms and conditions of his detention at the hands of Defendants under the color of state law, in violation of her rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.
96. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING

97. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
98. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, supervised and trained Defendants **POLICE OFFICER PATRICK D. CRAIG (26996)** and **POLICE OFFICERS JOHN DOE #1-4** and its employees.
99. A timely Notice of Claim was filed by Plaintiff and the City is liable via *respondeat superior*.
100. There was negligent supervision and training presented in many instances of this entire event, specifically but not limited to - in COVID compliance procedures, arrest procedures, and how to

safely house an inmate in custody.

101. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

102. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
103. Defendants **THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
104. A timely Notice of Claim was filled and the City is liable via *respondeat superior*.
105. Based on the totality of the circumstances and at many moments throughout the incident up until today, Plaintiff experiences severe and significant emotional distress as a result of this experience.
106. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
VIOLATION OF DUE PROCESS & FABRICATION OF EVIDENCE
(Violations of 42 USC § 1983, The Due Process Clause of the United States Constitution, the 14th Amendment, the New York State Constitution)

107. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
108. Defendants, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.

109. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
110. In this case, there was fabrication of evidence, false swearing, mishandling of Mr. Forde, among other due process violations.
111. Plaintiff was denied the minimal civilized measures of life's necessities and the minimal requirements for covid safety compliance.
112. Plaintiff was exposed to poor sanitation, infestation, inadequate nutrition, requests for medical attention, masks, and distancing were all ignored, phone calls and use of bathroom facilities were denied, and other unacceptable and inhumane scenarios while imprisoned at the hands of Defendants.
113. Defendants failed to disclose evidence inconsistent with Plaintiff's guilt and falsely reported facts in the sequence of events of this incident. ("Because evidence fabrication serves to both improperly charge and/or arrest a plaintiff as well as unfairly try him, the *Coffey* violation, in its essence, involves aspects of both the Fourth Amendment and procedural due process."); *Myers v. Cnty. of Nassau*, 825 F.Supp.2d 359, 367 (E.D.N.Y. 2011) (noting that when a police officer turned over fabricated evidence to the prosecutor, such conduct can be redressed, not as a *Brady* violation, but as a deprivation of liberty on the basis of false and fabricated evidence).
114. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of New York law, rules and regulations.
115. The deprivation of liberty is established past the date Plaintiff the District Attorney declined to prosecute his case.
116. As a result of the foregoing, Plaintiff was deprived of her liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TENTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983
BY THE CITY OF NEW YORK
CLAIM FOR *MONELL* LIABILITY

117. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
118. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
119. At all times material to their complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
120. Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4** being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. These are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff and which

are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

121. The existence of the above-described *de facto* unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and Police Officers and defendant **THE CITY OF NEW YORK**, including but not limited to the NYPD.
122. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of **THE CITY OF NEW YORK**'s NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the correction officers come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.
123. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
124. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD, and to require compliance with the Constitution and laws of the United States.

125. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the NYPD, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.
126. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff without probable cause and then kept him in unsanitary and inhuman conditions.
127. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
128. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their employees, agents and representatives of NYPD.
129. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.
130. In this case, there was: Police withholding evidence and/or misrepresenting or falsifying evidence; overall inadequate police work and permitting and/or enforcing false arrest and placing Plaintiff in

unsafe and unconstitutional conditions of confinement.

131. The acts complained of were carried out by the aforementioned defendants in their capacities as officers pursuant to customs, policies, usages, practices, procedures and rules of the City, NYPD, all under the supervision of higher-ranking representatives, employees and/or agents of the NYPD.
132. The aforementioned customs, practices, procedures and rules of the City and NYPD include, but are not limited to: 1) arresting persons known to be innocent in order to meet “productivity goals”; 2) falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony to protect other officers and meet productivity goals; 3) failing to supervise, train, instruct and discipline police officers thereby encouraging their misconduct and exhibiting deliberate indifference towards the constitutional rights of persons within the officers’ jurisdiction; 4) discouraging police officers from reporting the corrupt or unlawful acts of other officers; 5) retaliating against officers who report police misconduct; and 6) failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented with proper supervision.
133. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of City and NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the police come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.
134. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented by the following civil rights actions and parallel prosecutions of police officers:
 - a) Colon v. City of New York, 9-CV-0008 (JBW)(E.D.N.Y) (in an Order dated November 29, 2009

denying the City's motion to dismiss on Iqbal/Twombly grounds, wherein the police officers at issue were and prosecuted for falsifying evidence, the Honorable Jack B. Weinstein wrote:

'Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration— through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.'

b) McMillan v. City of New York, 04-cv-3990 (FB)(RML) (E.D.N.Y.)(officers fabricated evidence against an African-American man in Kings County and initiated drug charges against him, despite an absence of an quantum of suspicion);

c) Richardson v. City of New York, 02-CV-3651 (JG)(CLP) (E.D.N.Y.)(officers fabricated evidence including knowingly false sworn complaints, against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);

135. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints or otherwise falsifying or fabricating evidence, are further evidenced, inter alia, by the following:

a) Morgan Cloud, *The Dirty Little Secret*, 43 EMORY L.J. 1311, 1311-12 (1994) ("Judges, prosecutors, defense lawyers, and repeat offenders all know that police officers lie under oath."); Jerome H. Skolnick, *Deception by Police*, CRIM. JUST. ETHICS, Summer/Fall 1982, at 40, 42 (concluding that police "systematic[ally]" perjure themselves to achieve convictions); ALAN M. DERSHOWITZ, *THE ABUSE EXCUSE* 233 (Hachette Book Group 1994) (suggesting that "recent disclosures about rampant police perjury cannot possibly come as any surprise" to those who have practiced criminal law in state or federal courts); ALAN M. DERSHOWITZ, *THE BEST DEFENSE* xxi-xxii (Random House 1983) ("Almost all police lie about whether they violated the Constitution in order to convict guilty defendants."); Deborah Young, *Unnecessary Evil: Police Lying in Interrogations*, 28 CONN. L. REV. 425, 427 (1996) (asserting that "the reported cases of police lying represent only a fraction of the actual cases in which police lying occurred"); David Kocieniewski, *Perjury Dividend-A Special Report*, N.Y. TIMES, Jan.5, 1997, at A1 (noting that according to one New York police officer, "lying under oath was standard procedure"); *Lie Detectors Could Curb Police Perjury*, USA TODAY, Aug. 1, 1996, (Magazine), at 13 ("[M]any experienced trial lawyers have said they believe police officers frequently lie on the stand."); Joseph D. McNamara, *Has the Drug War created an Officer Liars' Club?*, L.A. TIMES, Feb. 11, 1996, at M1 (noting recent perjury scandals have surfaced in police departments in Los Angeles, Boston, New Orleans, San Francisco, Denver, New York, and other large cities; and stating "[H]undreds of thousands of law-enforcement officers commit felony perjury every year testifying about drug arrests.").

b) The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their superiors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.¹ {...} What breeds this tolerance is deep-rooted perception among many officers of all ranks within the Department that there is nothing really wrong with compromising the facts to fight crime in the real world. Simply put, despite devastating consequences of police falsifications, there is a persistent belief among officers that it is necessary and justified, even if it is unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, "doing God's work" – doing whatever it takes to get the suspected criminal off the streets. This is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, "What's wrong with that? They're guilty." *See*, Mollen Commission Report pgs 36-41.

136. The existence of the aforesaid unconstitutional customs and policies, specifically with regard to "productivity goals," may be further inferred from the following: Deputy Commissioner Paul J. Browne has repeatedly admitted that NYPD commanders are permitted to set "productivity goals."¹
137. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the failure to supervise, train, instruct, and discipline police officers, encouraging their misconduct, and exhibiting deliberate indifference towards the constitutional rights of persons with whom officers come into contact are further evidenced, inter alia, by the following:

a) In response to the Honorable Judge Weinstein's ruling of November 25, 2009 in Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noticed a "widespread... custom or policy by the city approving illegal conduct" such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, "When it happens, it's not for personal gain. It's more for convenience."

b) Regarding Defendant City's tacit condonement and failure to supervise, discipline or provide remedial training when officers engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent of the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse and misconduct. When it does, however, Commissioner Kelly controls whether the NYPD pursues the matter and he alone has the authority to impose discipline on the subject officer(s). Since 2005, during Kelly's tenure, only one quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than

¹ Jim Hoffer NYPD Officer claims pressure to make arrests WABC-TV Eyewitness News, March 22010, available at <http://abclocal.go.com/Wabc/story?section=news/investigators&id=73053S6> ("Police Officers like others who receive compensation are provided productivity goals and they are expected to work").

verbal "instructions." Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (i.e., closed without action or discipline) has spiked from less than 4% each year between 2002 and 2006, to 35% in 2007, and approximately 30% in 2008. Alarming, the NYPD has refused to prosecute 40% of the cases sent to it by the CCRB in 2009. As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given only verbal instructions or the matter was simply dropped by the NYPD rose to 66% in 2007. Substantiated complaints of excessive force against civilians accounted for more than 10% of the cases that the NYPD dropped in 2007 and account for more than 25% of cases dropped in 2008.²

138. The existence of the above-described de facto unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and defendant **THE CITY OF NEW YORK**, including without limitation, the Police Commissioner.
139. All of the foregoing acts by defendants deprived Plaintiff of her federally protected rights, including, but limited to, the constitutional rights enumerated herein.
140. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
141. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD and to require compliance with the Constitution and laws of the United States.
142. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the Commissioner, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the

² Daily News, Editorial: City Leaders Must Get Serious About Policing the Police, August 20, 2008.

effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.

143. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to arrest Plaintiff, medicate and confine him thus, making blatant violations of Plaintiff's constitutional rights.
144. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
145. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their agents, employees, or representatives.
146. There is a clear causal connection between the actions of **THE CITY OF NEW YORK** and the constitutional violations in this case. Here, **THE CITY OF NEW YORK** caused and is implicated in the constitutional violations and thus, should be held liable for the unconstitutional actions taken by the police officers.
147. Here, it is clear that **THE CITY OF NEW YORK** took action by their hiring and retention, which is sufficient to expose them to liability. *Amnesty America v. Town of West Hartford*, 361 F3d 113, 125 (2d Cir. 2004).
148. Upon information and belief, **THE CITY OF NEW YORK** was on notice that these policies were being unconstitutionally applied by inadequately trained medical staff and consciously has chosen not to train them or hire staff more adequate. *City of Canton, Ohio v. Harris*, 489 US 378 at 387.

149. By being aware of the failure to attend to the plaintiff's medical needs and other unconstitutional actions and consciously ignoring them, this in turn can mean that **THE CITY OF NEW YORK** ratified the defendants' actions. *See, Sorlucio v. New York City Police Dept.*, 971 F2d 864, 870-871 (2d Cir. 1992) (municipality lies where the subordinate's misconduct is "so manifest, as to imply the constructive acquiescence of senior policymaking officials").
150. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

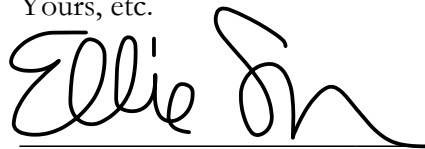
WHEREFORE, Plaintiff **RICARDO FORDE** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
sanctions
- d. Property damage;
- d. Such other and further relief as this court may deem just and proper, including injunctive and declaratory relief.

Dated: New York, New York
April 6, 2021

Yours, etc.



Ellie A. Silverman, Esq.
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Attorneys for Plaintiff
RICARDO FORDE
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New York, New York 10022
215-620-6616

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **THE LAW OFFICE OF ELLIE SILVERMAN, PC**, attorneys of record for Plaintiff **RICARDO FORDE**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
April 6, 2021


Ellie A. Silverman, Esq.

Index No.: _____/2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RICARDO FORDE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER PATRICK D. CRAIG (26996) and POLICE OFFICERS JOHN DOE #1-4, (the names "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

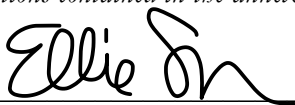
Defendants.

SUMMONS AND VERIFIED COMPLAINT

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215-620-6616

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 6, 2021



Ellie A. Silverman, Esq.

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007;
2. **POLICE OFFICER PATRICK D. CRAIG (SHIELD #26996)**, NYPD 77th Precinct, 127 Utica Avenue, Brooklyn, New York 11213.